

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK----- X
DANIEL HERNANDEZ,

SUMMONS

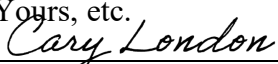
Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD POLICE OFFICER
KACHUN CHEUNG, Shield No. 5890, and NYPD
POLICE OFFICERS JOHN DOE NUMBERS 1-10,Plaintiff designates New York
County as the place of trial.Defendants.
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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 28, 2021Yours, etc.

Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER KACHUN CHEUNG, SHIELD NO. 5890, 6th Precinct; 233
West 10th Street, New York, NY 10014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

DANIEL HERNANDEZ,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
KACHUN CHEUNG, Shield No. 5890, and NYPD
POLICE OFFICERS JOHN DOE NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff DANIEL HERNANDEZ, by his attorneys, Shulman and Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 4, 2021, at approximately 10:00 p.m., plaintiff DANIEL HERNANDEZ, while lawfully in the vicinity of West 12th Street and Greenwich Avenue in New York, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff was subjected to excessive force by the defendant officers, causing him to suffer humiliation as well as mental and emotional injury. Plaintiff was then unlawfully imprisoned at the 6th Precinct Police Station for approximately 24 hours before he was released on his own recognizance. Plaintiff was denied the right to due process and a fair trial for the false charges, which were dismissed and sealed on or around May 24, 2021. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DANIEL HERNANDEZ is a resident of the state of New York.
3. NYPD POLICE OFFICER KACHUN CHEUNG, Shield No. 5890, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD POLICE OFFICER KACHUN CHEUNG, Shield No. 5890, was at all times relevant herein, assigned to the 6th Precinct.
5. NYPD POLICE OFFICER KACHUN CHEUNG, Shield No. 5890, is being used in his individual and official capacities.
6. NYPD POLICE OFFICERS JOHN DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. NYPD POLICE OFFICERS JOHN DOE NUMBERS 1-10 are being sued in their individual and official capacities.
8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
10. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.
11. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on July 13, 2021.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On February 4, 2021, at approximately 10:00 P.M., Plaintiff was lawfully present in the vicinity of West 12th Street and Greenwich Avenue in New York, New York, when the defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

16. On the evening of February 4, 2021, Plaintiff and his wife were out for dinner to celebrate her recent eye surgery, from which her recovery was almost complete.

17. As they were leaving the restaurant in the vicinity of West 12th Street and Greenwich Avenue, the Plaintiff observed defendant NYPD officers approaching them.

18. Defendant officers accused the plaintiff of hitting his wife, and the two tried to explain that she'd recently had eye surgery and was still healing.

19. It was at this point that the defendant NYPD officers began to unlawfully arrest the plaintiff, restraining him with metal handcuffs and leg shackles.

20. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

21. Nevertheless, Plaintiff was unlawfully arrested, handcuffed, and shackled by defendant officers without legal justification or probable cause.

22. Plaintiff did not resist arrest.

23. The Defendant Officers then placed the plaintiff in the back of an unmarked police vehicle and transported him against his will to the 6th Precinct Police Station, where he was unlawfully searched, fingerprinted, photographed, and placed in a holding cell.

24. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

25. The plaintiff's wife was thereafter transported to a hospital by defendant officers even though she insisted she did not need medical assistance; she was made by defendant

police officers to fill out a Domestic Incident Report, in which she wrote, “My husband did not hit me.”

26. The defendant police officers provided the New York County District Attorney’s Office with the false, misleading, and/or incomplete information that Plaintiff committed a crime.

27. Specifically, the defendant police officers falsely stated to the New York County District Attorney’s Office that the plaintiff committed the crime of Third Degree Assault without probable cause.

28. On February 5, 2021, after approximately 24 hours in custody, the Plaintiff was arraigned in New York County Criminal Court and he was released on his own recognizance.

29. At the arraignment on February 5, 2021, Assistant District Attorney Kaleigh Shea requested a full order of protection, barring the Plaintiff from living in his own home.

30. Prior the arraignment, on the night of February 4, 2021, and the morning of February 5, 2021, the Plaintiffs wife repeatedly left voice messages for ADA Shea, stating that her husband did not hit her.

31. ADA Shea refused to call the Plaintiffs wife back, and refused to listen to the Plaintiffs wife that she just had eye surgery, and her husband did not hit her.

32. ADA Shea, based on the Defendants Officers false allegations, stated to the Judge that the Plaintiff was a danger to his wife and that he struck his wife, in asking for a full stay away order of protection.

33. Based on the Defendant Officers false representations, a full stay away order of protection was issued on February 5, 2021.

34. On February 6, 2021, Defendant officers showed up at the Plaintiffs wife’s apartment, and tried to intimate her to sign a new Domestic Incident Report implicating her husband, the Plaintiff.

35. The Plaintiffs wife refused to go along with the Defendant Officers lies and illegal intimidation, and told them to leave her apartment at once.

36. As a result of his arrest, the plaintiff missed approximately four (4) days of work, as well as incurred fees for a private defense attorney and an extended hotel stay.

37. Plaintiff, because of the full stay away order, was forced to spend approximately \$10,000 on a hotel, and \$5,000 on a private criminal defense lawyer.

38. The NYU surgery records were sent to ADA Shea within 2 days of the arraignment, which clearly showed an eye procedure done to Plaintiffs wife.

39. On the first criminal court appearance after arraignments, ADA Shea again re-iterated her false representations based on the Defendant Officers lies, and continued to request a full order of protection.

40. The charges which were falsely made against the Plaintiff by the defendant officers were dismissed outright and sealed on or around May 24, 2021.

41. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

42. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

43. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

44. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

45. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

46. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

47. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

48. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

52. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

54. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

55. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

58. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search Plaintiff.

61. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

65. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein

66. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

67. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

68. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

69. In withholding/creating false evidence against Plaintiff DANIEL HERNANDEZ, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

70. As a result of the foregoing, Plaintiff DANIEL HERNANDEZ sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

74. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

75. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against her by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

76. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

77. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

78. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

79. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

80. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, DANIEL HERNANDEZ. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

81. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

82. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

86. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

87. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

88. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

89. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

90. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

91. Defendants failed to intervene to prevent the unlawful conduct described herein.

92. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to pat-down search and other physical constraints.

93. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

97. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

98. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

99. Defendants commenced and continued a criminal proceeding against Plaintiff.

100. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for the charges for which he was prosecuted.

101. The prosecution and criminal proceedings against the plaintiff were dismissed completely on the aforementioned dates.

102. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

103. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

104. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

105. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff DANIEL HERNANDEZ demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which

exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
December 28, 2021

Yours, etc.

Cary London

Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER KACHUN CHEUNG, SHIELD NO. 5890, 6th Precinct; 233
West 10th Street, New York, NY 11014

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN AND HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 28, 2021

Cary London

CARY LONDON, ESQ.